2025-0000052

F I L E D

SAN FRANCISCO County Clerk

June 18, 2025

by: Giselle Romo

Deputy County Clerk

San Francisco Planning

49 South Van Ness Avenue, Suite 1400
San Francisco, CA 94103
628.652.7600
www.sfplanning.org

NOTICE OF DETERMINATION

FEIR Certification Date:	April 17, 2025
Final Approval Date:	June 17, 2025
Case No.:	**2022-009819ENV**
State Clearinghouse No:	2024050241
Project Title:	**3400 Laguna Street Project**
Project Location-Specific:	3400 Laguna Street
Project Location-City/County:	City and County of San Francisco
Zoning:	RM-1 (Residential – Mixed, Low Density) Use District 40-X Height and Bulk District
Block/Lot:	1471/1003
Lot Size:	68,090 square feet
Lead Agency:	San Francisco Planning Department, see address above
Project Applicant:	Mary Linde, CEO/Heritage on the Marina (415) 202-0343 MLinde@heritagesf.org
Staff Contact:	Megan Calpin (628) 652-7508 CPC.3400LagunaEIR@sfgov.org

To:	County Clerk, City and County of San Francisco City Hall Room 160 1 Dr. Carlton B. Goodlett Place San Francisco, CA 94102	State of California Office of Planning and Research PO Box 3044 Sacramento, CA 95812-3044

In compliance with the California Environmental Quality Act (CEQA), Sections 21108 or 21152 of the Public Resources Code, the Guidelines of the Secretary for Resources, and San Francisco requirements, this Notice of Determination is transmitted to you for filing. At the end of the posting period, please return this Notice to the Staff Contact with a notation of the period it was posted.

Attached fee:

☒ $82 filing fee **AND** ☒ $4,123.50 EIR Fee **OR**
☐ No Effect Determination (From CDFW)

Project Description

The approximately 68,090-square-foot (approximately 1.6-acre) project site at 3400 Laguna Street is located on a corner lot southeast of the Laguna and Bay streets intersection in the Marina neighborhood. The site is bounded by Bay Street to the north, single- and multi-family residences near to and along Octavia Street to the east, Francisco Street to the south, and Laguna Street to the west. The project site has been occupied by the Heritage on the Marina residential care retirement community since 1925. Heritage on the Marina consists of five existing structures of approximately 83,200 gross square feet: the Julia Morgan Building, the Perry Building, the Perry Building Connector, the Health Center, and the Caretaker's Cottage. The proposed project would continue to operate as a residential care facility. The proposed project would demolish two of the five existing buildings (the Perry Connector and the Health Center) and construct two new buildings over a below-grade garage (the Bay Building and the Francisco Building) of heights not to exceed 40 feet (excluding rooftop appurtenances) and in the same locations as the demolished structures. The proposed project would renovate the Julia Morgan Building and the Perry Building. In total, the proposed project would add approximately 58,380 square feet of institutional use, and increase the number of residential care suites by 23 from 86 to 109.

The City took the following actions in connection with the project:

- On June 17, 2025, the Board of Supervisors upheld the Planning Commission's certification of the Final EIR (Motion No. M25-073), conditionally disapproved the Planning Commission's approval of the Conditional Use Authorization and conditionally approved the Conditional Use Authorization with a revision to the findings (Motion No. M25-074) and adopted a motion directing the Clerk of the Board to prepare findings in support of the Board of Supervisors' disapproval of the proposed CUA (M25-075). The Board of Supervisors also conditionally disapproved the Historic Preservation Commission's approval of the Certificate of Appropriateness and conditionally approved a Certificate of Appropriateness for the same Planning Case with different conditions (M25-076), subject to the adoption of written findings by the Board in support of this determination (M25-077).

Determinations

The City and County of San Francisco decided to approve the project on June 17, 2025. The final environmental impact report (FEIR) was certified, and a Certificate of Appropriateness and Conditional Use Authorization were approved subject to conditions of approval, by the Planning Commission on April 17, 2025, in a joint session with the Historic Preservation Commission. Following appeals, the project was officially approved on June 17, 2025, when the Board of Supervisors denied the appeal of the FEIR, and approved modifications to the Certificate of Appropriateness and Conditional Use Authorization and their respective findings. A copy of the document(s) may be examined at the San Francisco Planning Department, 49 South Van Ness Avenue, Suite 1400, San Francisco, CA, 94103 Case File no. 2022-009819ENV and Board of Supervisors, City Hall, 1 Carlton B. Goodlett Place Room 244, San Francisco, CA, 94102 in file no 250555, 250560, 250561, 250564, and 250565.

1. An Environmental Impact Report has been prepared pursuant to the provisions of CEQA. It is available to the public and may be examined at the Planning Department at the above address.

2. A determination has been made that the project in its approved form will not have a significant effect

on the environment.

3. Mitigation measures were made a condition of project approval for the project.
4. A mitigation and monitoring reporting program was adopted for this project.
5. A statement of overriding considerations was not adopted for this project.
6. Findings were made pursuant to the provisions of CEQA.

Joy Navarrete

For Lisa Gibson
Environmental Review Officer

6/18/2025

Date

cc:

Mary Linde, CEO/Heritage on the Marina
Stephen Sherrill, Supervisor District 2

Date Received for filing at LCI:

State of California - Department of Fish and Wildlife

2025 ENVIRONMENTAL DOCUMENT FILING FEE CASH RECEIPT

DFW 753.5a (REV. 01/01/25) Previously DFG 753.5a

Print [redacted] Save

RECEIPT NUMBER:
38-06/18/2025-093

STATE CLEARINGHOUSE NUMBER *(If applicable)*
2024050241

SEE INSTRUCTIONS ON REVERSE. TYPE OR PRINT CLEARLY.

LEAD AGENCY	LEAD AGENCY EMAIL	DATE
SAN FRANCISCO PLANNING DEPARTMENT	pic@sfgov.org	06/18/2025

COUNTY/STATE AGENCY OF FILING	DOCUMENT NUMBER
SAN FRANCISCO COUNTY	2025-0000052

PROJECT TITLE

3400 LAGUNA STREET PROJECT

PROJECT APPLICANT NAME	PROJECT APPLICANT EMAIL		PHONE NUMBER
MEGAN CALPIN	cpc.3400lagunaeir@sfgov.org		(628) 652-7508
PROJECT APPLICANT ADDRESS	**CITY**	**STATE**	**ZIP CODE**
49 SOUTH VAN NESS AVENUE SUITE 1400	SAN FRANCISCO	CA	94103

PROJECT APPLICANT *(Check appropriate box)*

☒ Local Public Agency ☐ School District ☐ Other Special District ☐ State Agency ☐ Private Entity

CHECK APPLICABLE FEES:

☒ Environmental Impact Report (EIR)	$ 4,123.50	$ 4,123.50
☐ Mitigated/Negative Declaration (MND)(ND)	$ 2,968.75	$
☐ Certified Regulatory Program (CRP) document - payment due directly to CDFW	$ 1,401.75	$
☐ Exempt from fee		
☐ Notice of Exemption (attach)		
☐ CDFW No Effect Determination (attach)		
☐ Fee previously paid (attach previously issued cash receipt copy)		
☐ Water Right Application or Petition Fee (State Water Resources Control Board only)	$ 850.00	$
☒ County documentary handling fee	$ 82.00	$ 82.00
☐ Other		$

PAYMENT METHOD:

☐ Cash ☐ Credit ☒ Check ☐ Other 102533,102534 **TOTAL RECEIVED** $ 4,205.50

SIGNATURE	AGENCY OF FILING PRINTED NAME AND TITLE
X [signature]	Giselle Romo Deputy Clerk

ORIGINAL - PROJECT APPLICANT COPY - CDFW/ASB COPY - LEAD AGENCY COPY - COUNTY CLERK DFW 753.5a (Rev. 01012025)